

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-23

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT,

RESPONDENT.

NOTICE OF SUPPLEMENTAL AUTHORITY

Attached is the recently issued decision of Administrative Law Judge Richard Ambrow in *Samsung Electronics America, Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, denying Third-Party Respondent’s Petition for an Award of Attorneys’ Fees, etc., FMC Docket No. 24-17 (March 20, 2026) (the “March 20 OOCL Order”).

The Presiding Officer may find portions of the March 20 OOCL Order that address the ocean carrier’s counterclaim are relevant to the pending motion to dismiss the counterclaim of HMM in this matter (Dkt. 22):

- “Thus, there was no legal basis for OOCL’s counterclaim or OOCL’s third-party complaint.” March 20 Order at 12.
- “Because the counterclaim and third-party complaint were unsupported by any legal authority, and lacked factual support, I would be inclined to find that its allegations were frivolous or objectively unreasonable but for the fact that the Commission stated that OOCL was “entitled” to file an amended complaint, and that it should be given at least one chance to amend.” *Id.* at 13.
- “Along the same lines, I would be inclined to find improper motivation for the counterclaim and third-party complaint but for the Commission’s remand.” *Id.*
- “In light of the weakness of OOCL’s allegations in OOCL’s counterclaim and OOCL’s third-party complaint, even after they were amended, and in light of the fact that two ALJs and the Commission all expressed a dim view of OOCL’s section 41102(a) claims, one could fairly wonder if the only reason OOCL was pursuing its 41102(a) claims was to delay SEA’s claim from advancing procedurally. Indeed, in my November 26 Order, I questioned whether OOCL had a dilatory motive when OOCL argued that I should allow its AMCC

and ATPC to go forward because OOCL suggested that it would continue to appeal and cause further delays to this proceeding.” *Id.*

- “As discussed above, I would be inclined to agree that OOCL pursued a meritless counterclaim and third-party complaint but for the fact that the Commission permitted OOCL to amend its counterclaim (and, by logical extension, the substantially similar third-party complaint).” *Id.*

Dated: March 27, 2026

Respectfully Submitted,

HOLLAND & KNIGHT LLP

By: /s/ Chris Nolan
Christopher R. Nolan
Marisa Marinelli
31 West 52nd Street
New York, NY 10019
Telephone: (212) 513-3200
chris.nolan@hklaw.com
marisa.marinelli@hklaw.com

Gerald A. Morrissey III
Ashleigh T. Higgs
800 17th Street N.W., Suite 1100
Washington, D.C. 20006
Telephone: (202) 469-5497
Telephone: (202) 469-5549
gerald.morrissey@hklaw.com
ashleigh.higgs@hklaw.com

Allison Luzwick
200 S. 10th Street, Suite 1000
Richmond, Virginia 23219
Telephone: (804) 799-6593
allison.luzwick@hklaw.com

*Counsel to Complainant Samsung
Electronics America, Inc.*

CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

Neil Quartaro
Joshua P. Stein
Kathryn Sobotta
Christopher Raleigh
COZEN O'CONNOR
3 WTC
175 Greenwich Street, 55th Floor
New York, NY 10007
(212) 453-3934
nquartaro@cozen.com
jstein@cozen.com
ksobotta@cozen.com
chris.raleigh@cozen.com

Executed: March 27, 2026

/s/ Kristine O. Little
Kristine O. Little